SSRWives sale: selected clauses

Sale document excerpts | Document guide | 23 October 2026

What this file contains

Original APA pages 1, 4, 5 and 16, followed by original IP Assignment page 2. The selected pages identify the parties, the NFT exclusion, retained liabilities, purchase consideration, purchased assets, and the controlling agreement.

How to cite the exhibits

APA p. 1: XYZ AI, Inc. and Studio Hen, LLC; effective date and NFT exclusion.
APA p. 4: Excluded Assets and No Assumption of Liabilities.
APA p. 5: $100 cash consideration plus 12.5% of Net Revenues.
APA p. 16: Exhibit A (Purchased Assets) and Exhibit B (Excluded Assets).
IP Assignment p. 2: section 3 makes the Purchase Agreement controlling.

Document handling

This excerpt combines complete original pages with this document guide. Original page numbering is retained. The original PDFs remain unchanged. Signature and contact pages are omitted. No content on any selected source page has been redacted or rewritten. The original files contain digital signatures; this derivative excerpt does not reproduce their verification.

Original file SHA-256 fingerprints

asset_purchase_agreement_2025-02-24.pdf

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ip_assignment_2025-03-18.pdf

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ASSET PURCHASE AGREEMENT

This ASSET PURCHASE AGREEMENT (this "**Agreement**") is made and entered into as of February 24, 2025 (the "**Effective Date**") by and among XYZ AI, Inc., a Delaware corporation ("**Buyer**"), and Studio Hen, LLC, a Minnesota limited liability company ("**Seller**"). Buyer and Seller are sometimes each referred to herein as a "**Party**" and collectively as the "**Parties**."

WHEREAS, Seller is engaged in the development, marketing, and exploitation of certain intellectual property and other assets related to the SSRWives game brand (the "**Business**");

WHEREAS, Seller owns certain assets used or held for use in the conduct of the Business, including (without limitation) certain intellectual property rights (the "**Purchased Assets**," as defined herein);

WHEREAS, Seller desires to sell, assign, transfer, convey, and deliver to Buyer, and Buyer desires to purchase and acquire from Seller, all of Seller's right, title, and interest in, to, and under the Purchased Assets, subject to and in accordance with the terms and conditions set forth in this Agreement;

WHEREAS, the Parties acknowledge that an NFT (non-fungible token) developed by Seller and all intellectual property rights exclusively relating thereto are specifically excluded from the Purchased Assets (the "**Excluded Assets**," as defined herein); and

WHEREAS, as part of the transaction contemplated by this Agreement, the Parties intend to provide for certain transition arrangements for key personnel, including David Cortez, who is the sole employee of Seller, on the terms and conditions set forth herein and in a separate written Transition Agreement (as defined herein).

NOW, THEREFORE, in consideration of the premises, and of the mutual covenants, representations, warranties, and agreements hereinafter set forth, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties, intending to be legally bound, hereby agree as follows:

ARTICLE 1

DEFINITIONS

1. **Definitions.** As used in this Agreement, the following capitalized terms shall have the meanings set forth below. Other terms may be defined in the body of this Agreement

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n) "**Royalty Period**" means the period of one (1) year following the Closing Date (or such other period as may be agreed by the Parties in writing).

o) "**Taxes**" means any and all U.S. federal, state, local, and non-U.S. taxes, fees, levies, duties, tariffs, imposts, and other charges of any kind (together with any and all interest, penalties, additions to tax, or additional amounts imposed by any Governmental Authority).

p) "**Transaction Documents**" means this Agreement and all agreements, certificates, instruments, and other documents to be executed or delivered pursuant hereto.

ARTICLE 2

PURCHASE AND SALE OF ASSETS

1. **Excluded Assets.** Notwithstanding anything to the contrary in this Agreement, the assets listed in Exhibit B (collectively, the "**Excluded Assets**") shall be retained by Seller and shall not be sold, transferred, assigned, conveyed, or delivered to Buyer hereunder. Specifically, and without limitation, the NFT (non-fungible token) developed by Seller and any Intellectual Property Rights exclusively relating thereto shall be deemed Excluded Assets.

2. **No Assumption of Liabilities.** Buyer shall not assume or be responsible for any Liabilities of Seller or related to the Purchased Assets that arise prior to the Closing Date, unless expressly set forth in this Agreement or in any Schedule hereto (the "**Assumed Liabilities**," if any). All Liabilities not specifically assumed by Buyer hereunder shall remain the sole responsibility of Seller (the "**Retained Liabilities**").

ARTICLE 3

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PURCHASE PRICE; ROYALTY; PAYMENT

1. **Purchase Price.** The purchase price for the Purchased Assets shall consist of: (a) Cash Consideration: Buyer shall pay to Seller the sum of One Hundred Dollars (US $100.00) (the "**Cash Consideration**") at Closing by wire transfer of immediately available funds; and (b) Royalty: The Royalty described in Section 3.2 below.

2. **Royalty.** (a) Royalty Rate and Period. As additional consideration for the Purchased Assets, Buyer shall pay to Seller a royalty (the "**Royalty**") equal to twelve and a half percent (12.5%) of Net Revenues earned and received by Buyer during the Royalty Period. (b) Reporting and Payment. Buyer shall provide Seller with quarterly written statements of Net Revenues (detailing gross revenue and deductible items), and the Royalty due thereon, within thirty (30) days after the end of each calendar quarter during the Royalty Period. Each such statement shall be accompanied by payment in full of the Royalty then due. (c) Books and Records; Audit. Buyer shall maintain complete and accurate books and records reasonably sufficient for Seller to verify the Royalty due hereunder. Seller or its designated representative shall, upon reasonable notice and during normal business hours, have the right to audit such books and records no more than once in any twelve (12) month period. The cost of any such audit shall be borne by Seller, unless such audit reveals an underpayment of Royalty of five percent (5%) or more, in which case Buyer shall promptly reimburse Seller for the reasonable cost of the audit.

3. **No Withholding.** All payments hereunder shall be made without deduction, setoff, or withholding of any kind, except as required by applicable law.

4. **Taxes.** Seller shall be solely responsible for any Taxes imposed on or with respect to the payment and receipt of the purchase price under this Agreement (excluding any taxes based on Buyer's net income).

ARTICLE 4

CLOSING

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EXHIBITS AND SCHEDULES

EXHIBIT A

Purchased Assets

1. All Intellectual Property Rights relating to the SSRWives brand, including but not limited to:

    - Trademarks, service marks, trade names, logos, and designs;
    - Copyrights and moral rights to artwork, code, and other creative content;
    - All domain names, websites, social media accounts, and registration/credentials thereof;
    - Trade secrets, know-how, processes, methods, and other proprietary information;
    - Any and all goodwill and other intangible rights associated therewith.

2. All source code, object code, documentation, design documents, and any other technical data or information relating to the SSRWives game.

3. All documents, records, files, and data (whether in physical or electronic form) exclusively related to the Purchased Assets, including marketing materials, vendor lists, customer lists, and promotional content.

EXHIBIT B

Excluded Assets

1. Any NFT (non-fungible token) developed by Seller and any Intellectual Property Rights or intangible rights exclusively pertaining thereto.

2. Any cash, cash equivalents, bank accounts, or deposits of Seller not explicitly included as part of the Purchased Assets.

3. Any personal or real property owned or leased by Seller not identified in Exhibit A.

4. Corporate records, minute books, tax returns, or other governance documents of Seller.

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2. Recordation and Further Actions. Assignor hereby authorizes the Commissioner for Trademarks in the United States Patent and Trademark Office, and the Register of Copyrights in the United States Copyright Office, and the officials of corresponding entities or agencies in any applicable jurisdictions to record and register this IP Assignment upon request by Assignee. Following the date hereof, upon Assignee's reasonable request, and at Assignee's sole cost and expense, Assignor shall take such steps and actions, and provide such cooperation and assistance to Assignee and its successors, assigns, and legal representatives, including the execution and delivery of any affidavits, declarations, oaths, exhibits, assignments, powers of attorney, or other documents, as may be reasonably necessary to effect, evidence, or perfect the assignment of the Assigned IP to Assignee, or any assignee or successor thereto.

3. Terms of the Purchase Agreement. The parties hereto acknowledge and agree that this IP Assignment is entered into pursuant to the Purchase Agreement, to which reference is made for a further statement of the rights and obligations of Assignor and Assignee with respect to the Assigned IP. The representations, warranties, covenants, agreements, and indemnities contained in the Purchase Agreement shall not be superseded hereby but shall remain in full force and effect to the full extent provided therein. In the event of any conflict or inconsistency between the terms of the Purchase Agreement and the terms hereof, the terms of the Purchase Agreement shall govern.

4. Successors and Assigns. This IP Assignment shall be binding upon and shall inure to the benefit of the parties hereto and their respective successors and assigns.

5. Governing Law. This IP Assignment and any claim, controversy, dispute, or cause of action (whether in contract, tort, or otherwise) based upon, arising out of, or relating to this IP Assignment and the transactions contemplated hereby shall be governed by, and construed in accordance with, the laws of the United States and the State of Florida, without giving effect to any choice or conflict of law provision or rule (whether of the State of Florida or any other jurisdiction).

6. Counterparts. This IP Assignment may be executed in counterparts, each of which shall be deemed an original, but all of which together shall be deemed one and the same agreement. A signed copy of this IP Assignment delivered by facsimile, e-mail, or other means of electronic transmission shall be deemed to have the same legal effect as delivery of an original signed copy of this IP Assignment.

[SIGNATURES PAGE FOLLOWS]